Request for Proposals

Project Name:	Utilities Technology Master Plan (UTMP) and Customer Information System (CIS) Consulting Services Project ID's: 00.25.513 and 00.25.521
RFP #:	2026003
Pre-Proposal Conference time/location:	N/A

Proposal Due Date: **October 24, 2025**
Proposal Due Time: **2:00 P.M.**

All responses must be submitted electronically through the Bonfire platform. Hard copy submittals are not accepted.

Initial screening, ranking, final ranking, and negotiations will be in accordance with the criteria specified within this solicitation. The Board of County Commissioners reserves the right to accept or reject any and all submittals and to waive any and all informalities.

Scope of Services

Utility Services Overview

Indian River County (IRC) is located in the southeastern and east-central portions of Florida. Seated in Vero Beach, the County has approximately 503 square miles of land area. As of the 2023 census, the population was 169,795. The IRC Department of Utility Services (IRCDUS) was formed over 30 years ago when the County's water, wastewater, and solid waste utility services were consolidated under one department within Indian River County Board of County Commissioners (BCC). Today, IRCDUS provides water, wastewater, and solid waste services to a population of over 150,000.

The **water system**, the largest in the County, provides service to over 57,000 accounts, including residential and commercial customers within an urban service area (USA) of approximately 41 square miles. The water system includes two (2) water production facilities (WPF) with a total of sixteen (16) source water wells, two (2) demineralized concentrate treatment facilities, approximately nine hundred (900) miles of transmission and distribution pipelines, and ten (10) million gallons of treated water storage. The **wastewater system,** with four (4) water reclamation facilities (WRF), over four-hundred and eighty-four (484) miles of sanitary sewers, and four-hundred and twenty-eight (428) lift stations, is also the largest such system in the County and serves approximately 38,000 accounts. IRCDUS maintains and operates a **reuse system** comprising approximately forty-five (45) miles of pipeline, three-million gallons of storage, and supply pumping facilities.

The **Solid Waste Disposal District** (SWDD) is a dependent district of IRC created by the BCC on June 20, 1995, pursuant to the authority and procedures of Chapter 125.01(5)(a), Laws of Florida. SWDD provides for the disposal of all Municipal Solid Waste (MSW) generated in IRC at the IRC landfill as well as five (5) Customer Convenience Centers (CCC's). Its purpose is to have an efficient and environmentally sound solid and hazardous waste management system to prevent disease spreading, to promote orderly growth within the County, and to meet existing and projected demands for waste management, including collection and disposal of solid waste, yard waste, bulk waste and recyclables. SWDD has begun utilizing a leachate evaporator for leachate management via a partnership with Indian River Sustainability Center which concentrates the leachate for disposal back into the landfill and emits water vapor. SWDD also captures landfill gas to create Renewable Natural Gas under a private partnership. SWDD funding is from non-ad valorem assessments and tipping fees.

RFP Intent

This Project represents a dual-purpose engagement. The selected Consultant will:

1. **UTMP Development**: Develop a strategic, forward-looking UTMP to guide IRCDUS modernization efforts and technology investments over the next five (5) years.
2. **CIS Selection**: Lead a structured process of assessments, requirements gathering, and evaluation of vendor solutions, that will lead to the selection of a best-fit CIS solution that aligns with IRCDUS operational goals and the County's enterprise IT architecture.

This RFP is intended to provide potential Firms or Consultants with the necessary information to build a Proposal that meets IRCDUS's needs. Proposals should address the objectives, tasks, and deliverables detailed in this RFP and provide information on the Firm's practices, experience, and offerings that will meet or exceed the IRCDUS's expectations.

The Scope of Services for the UTMP includes a comprehensive review of IRCDUS's existing business processes, information technology (IT) and operational technology (OT) environments, staffing levels and competencies, to

identify gaps and opportunities relative to best practices and future-state vision, and the development of a strategic digital roadmap and associated budgets aligned with the BCC Strategic Goals.

In July 2010, IRCDUS selected CIS Infinity, a widely used Customer Information and Billing System developed by Advanced Utility Systems/Harris Computer, to replace its aging utility billing application. The implementation saw full "go-live" status by November 2011, with CIS Infinity formally in production. The transition included integration with external credit/debit tools (e.g., ONLINE Utility Exchange) to enhance delinquency management and credit risk mitigation. The CIS Infinity deployment represented a significant technological investment, yielding several operational improvements.

Over a decade since its deployment, CIS Infinity continues to support essential utility functions. However, growth in utility demand, complexity in rate management, increasing customer expectations, evolving regulatory requirements, expanded customer service needs, the shift toward cloud infrastructure, and the County's broader IT modernization goals have rendered the system due for a reassessment. More specifically:

- The existing maintenance contract is nearing expiration, necessitating timely strategic planning and decision-making.
- IRCDUS and the County now aim to optimize its wider technology transformation by evaluating the feasibility of on-premises architecture versus cloud-based Software-as-a-Service (SaaS) platform for its future-state.

As a mission-critical system with a direct impact on customer service and revenue management, the CIS is one of IRCDUS most significant technology assets. Replacing it with a modern SaaS solution is a strategic priority. As such, the selected Firm will also assist IRCDUS in assessing its CIS requirements, evaluating upgrade and/or replacement options, and supporting the selection of the new CIS solution that meets the Department's customer service, business, operational, and technical objectives. Firms are required to be independent and have no business, personal nor financial affiliations with any CIS vendor. IRCDUS also requires Firms to provide objective and vendor-neutral perspectives, as well as exercise discretion and confidentiality during the CIS evaluation and selection process.

Current Technology Landscape

This information is confidential per F.S. 119.0725, is incorporated into this request for proposals, and will be provided after execution of a non-disclosure agreement (NDA). Every proposer must review this document; and proposals submitted by firms that have not accessed the document will be rejected. The NDA is provided in the public files section of Bonfire, and shall be submitted, with evidence of authority to sign, via email to purchasing@indianriver.gov no less than 14 days prior to the due date for proposals.

IRCDUS Key Priorities

IRCDUS is committed to modernizing its operations and strengthening long-term organizational resilience. As the County experiences steady population growth and rising service demands, it recognizes that modernization is not solely a technical requirement, it is a business-driven initiative essential to improving operational performance, financial stewardship, and customer service delivery. Evolving the IRCDUS's technology landscape is central to meeting current and future expectations, enabling data-driven decision-making, and aligning people, processes, and platforms with the County's long-term strategic goals. This Project reflects IRCDUS's commitment to modernizing its technology ecosystem and improving customer experience through better service delivery, data transparency, and enterprise alignment. The selected Firm will be expected to address the following priorities:

Customer Experience Improvement
One core objective of this engagement is to improve how IRCDUS interacts with and serves customers. The future CIS and supporting systems should enable enhanced customer self-service, personalized communications, real-time

consumption alerts, and flexible payment options. The Consultant should define requirements that support a digital-first customer experience and enable Customer Service Representatives (CSRs) to deliver faster, more accurate, and more empathetic responses.

System Integration and Meter-to-Cash Transparency
The Consultant must emphasize the integration of all critical systems across the meter-to-cash lifecycle, including CIS, Advanced Metering Infrastructure (AMI), Geographic Information System (GIS), Computerized Maintenance Management System (CMMS) for work order management, Finance (ERP), and Document Management Systems (DMS). The goal is to enable real-time, end-to-end data transparency that supports accurate billing, proactive customer outreach, and efficient service call resolution. System interoperability must reduce handoffs, eliminate data silos, and provide CSRs with comprehensive access to customer account history, meter data, service orders, and payment status.

Foundation for Enterprise Transformation
This Project may become part of a broader County initiative to establish a modern, enterprise-wide operating model that aligns people, technology, and processes. The Consultant may evaluate the County's current IT (including utility operations) holistically and identify strategies that support long-term transformation. This includes aligning systems and staffing with industry best practices, standardizing business processes, improving cross-departmental collaboration, and adopting cloud-first technologies that support scalability, sustainability, and organizational agility.

Strategic Technology Roadmap (UTMP)
The UTMP must serve as a practical, prioritized roadmap to guide the IRCDUS's technology investments over the next five (5) years. It should provide short-, mid-, and long-term recommendations across infrastructure, applications, staffing, and governance. Emphasis should be placed on readiness for cloud migration, cybersecurity posture, data management practices, systems integrations, and the flexibility to adapt to future technologies and regulatory changes.

Cybersecurity and Regulatory Compliance
Given the sensitivity of utility customer data and financial transactions, the selected Consultant must ensure that system requirements and future-state architecture meet modern cybersecurity standards and regulatory obligations. The Plan should address identity and access management, encryption, audit trails, incident response, disaster recovery, and system recovery practices.

Organizational Readiness and Change Management
The Consultant must assess IRCDUS's readiness for change across Departments/Divisions, skill sets, and organizational culture, and recommend a Change Management strategy that ensures user adoption, minimizes operational disruption, and builds long-term capability. Training plans, communications strategies, and stakeholder engagement should be addressed in both the UTMP development and CIS selection phases.

Total Cost of Ownership and Sustainability
A comparative cost analysis must be developed for CIS solutions and broader IT initiatives, factoring in all components of ownership, licensing, implementation, hosting, support, integrations, staff resources, and long-term scalability. The Consultant should provide budget-aligned recommendations to support capital and operating fiscal planning cycles.

Project Goals and Objectives

The Consultant will work closely with the County's Information Technology staff, County departments, and management stakeholders to perform a high-level analysis of IRCDUS current technology landscape. The CIS will

be addressed early in the engagement due to the urgency of upcoming contract decisions and the system's importance to utility billing, customer engagement, and financial management.

As part of the CIS effort, the Consultant will:

- Assess the County's current CIS environment.
- Document current business processes, identify potential gaps, and assist with identifying potential process improvements
- Document functional and technical requirements necessary for a user-friendly CIS platform.
- Conduct a market scan of available SaaS and on-premises CIS products.
- Facilitate vendor engagement, procurement strategy, and contract negotiations.
- Deliver a comparative evaluation of viable CIS solutions, including functionality, scalability, vendor reputation, implementation risk, and five-year total cost of ownership.
- Analyze staff resource impacts and risks associated with data conversion, business continuity, and customer billing during the transition.

Findings related to the CIS will be documented and shared with IRCDUS leadership early in the engagement to support budget planning and procurement timelines.

In parallel with the CIS selection work, the Consultant will conduct a broader IT assessment across IRCDUS to develop the UTMP. This includes evaluating staffing, software and hardware assets, enterprise system usage, cybersecurity posture, and technology governance. The analysis will identify gaps and opportunities to improve business processes, reduce redundancies, and enhance service delivery, particularly through cloud-based technologies and system integration. The UTMP must address the following key requirements:

Business-Driven Technology Alignment
The UTMP must be rooted in business priorities, including operational efficiency, customer experience improvement, regulatory compliance, and financial sustainability. The Plan must evaluate how technology can enable core utility and enterprise functions and identify opportunities to streamline and digitize business processes across departments.

IT Administration and Data Management Responsibility
The Consultant must clearly define what elements of IT administration and data management remain within the County's responsibility, particularly as more systems transition to cloud-based platforms. This includes:

- Roles and responsibilities for managing data quality, access, and performance.
- Clarifying which parts of system infrastructure and application support can or should be shifted to vendors under cloud contracts.

Contractual and Cloud Governance Considerations
The UTMP must include guidance for the County on managing cloud-based system contracts, particularly in areas where vendors embed terms related to bandwidth, storage, or data residency. The Consultant should:

- Identify common pitfalls in cloud service contracts (e.g., hidden bandwidth fees, vague performance terms).
- Provide best practices for structuring vendor agreements that protect the County's interests.
- Address concerns around data being hosted in foreign jurisdictions (e.g., Canada) and the potential for board-level restrictions on data location and access.

Integration of Critical Systems for Operational Visibility
The County requires a roadmap for integrating systems for data transparency and decision making. The UTMP must:

- Identify how systems such as CIS, SCADA, GIS, CMMS, and other operational platforms can be integrated to provide a transparent, end-to-end view of customer and infrastructure data.
- Emphasize the need for Customer Service Representatives to access data such as service history, meter-reads, or billing issues from one platform or dashboard to effectively serve customers in real time.

Practical Use of Cloud-Based SCADA and Operational Tools
As cloud-based SCADA systems become more common, the Consultant must evaluate where and how the County can responsibly adopt cloud for real-time operational systems. The UTMP must:

- Assess the feasibility and timing of moving SCADA and related infrastructure to the cloud.
- Provide recommendations on the level of control, latency, and security needed to safely manage utility infrastructure using remote, vendor-managed platforms.

Data Usability and Reporting Flexibility
The UTMP must address how data can be structured and made usable across departments. This includes:

- Reducing reliance on manual reporting or IT intervention to extract key performance data.
- Providing guidance on how to architect systems so staff can independently generate actionable reports, such as isolating specific data points, without needing custom development or external support.

Change Readiness and System Familiarization
The Consultant must help the County understand what it means to adopt new technologies and platforms at scale. This includes:

- Documenting what adjustments staff must make as systems shift from traditional on-premise to vendor-managed cloud environments.
- Identifying steps the County can take now to prepare teams for changes in system access, support models, and reporting workflows.

Resource Requirements
The Consultant shall provide estimates of the resource requirements with high-level range of costs necessary to implement the prioritized recommendations defined within the Plan. These estimates must include both external implementation costs and internal IRCDUS and/or County resource requirements, identifying the specific roles, skillsets, and approximate time commitments (full-time equivalent or FTE) needed from staff throughout the implementation lifecycle. The cost schedule should be structured to reflect phased investments over time and aligned with the County's capacity for adoption and Change Management.

For the CIS in particular, the Consultant will provide a comprehensive resource recommendation strategy to support successful implementation. This strategy must outline the critical project roles, governance model, and decision-making structure required during the CIS implementation. The Consultant will also define the internal County resource needs, specifying both full-time and part-time roles (e.g., project managers, subject matter experts, testing coordinators, trainers, and operational leads), including time commitment estimates for each phase of the project (e.g., procurement, design, testing, deployment, and stabilization).

In addition, the Consultant must provide guidance on the staffing strategy required to maintain business continuity during the CIS implementation. This includes identifying operational functions that may be impacted by staff

reassignment to the project and recommending appropriate backfill staffing to support day-to-day operations during the transition. The County expects the Consultant to leverage their experience to propose effective strategies for balancing project and operational needs without compromising service delivery.

Deliverables
This UTMP should provide IRCDUS with a practical and informed strategy for transitioning from legacy systems to modern platforms. It must focus not only on system upgrades, but also on the necessary operational, contractual, and organizational shifts required to manage data and deliver utility services effectively in a cloud-first future.

All findings, recommendations, and strategic priorities, including CIS, will be consolidated into the final Utilities Technology Master Plan. The UTMP will provide a practical, actionable roadmap that aligns with Indian River County's operational objectives, financial plans, and long-term vision for a scalable, resilient, and customer-centric technology environment.

Submittal Instructions

Format of Submittals

Responses should be succinct; therefore, page limits are established for each section of the Proposal. Pages in excess of the referenced limits will result in a reduced score for each section in violation. **Images of licenses and certifications are not desired.** Please provide only information relevant to the requested services.

Proposals should not be marked "confidential", "trade secret" or the like. Any information submitted that is exempt from disclosure, in accordance with Florida Statute, MUST be submitted as a separate file, and include the reference in Florida Statute that authorizes the County to withhold that specific information from public record requests. The County reserves the right to not consider Proposals containing excessive exempt material, at the County's sole interpretation. This includes submittals summarily marked as exempt, confidential, or the like.

Proposals shall be prepared to display only on 8½ x 11 sheets (no legal or ledger sheets) with font size for text not being smaller than 11 pt equivalent for Calibri or Times New Roman.

Information to Be Submitted

Proposers shall respond to each selection criteria in this RFP in the same order as requested. Proposals shall be assembled into a single searchable PDF file, complete with bookmarks linked to all sections.

Only provide information that is solicited herein or necessary for the proposal to be effective. Do not provide elaborate graphics unless specifically requested. Generic literature or marketing materials are not desired and may have a negative impact on the overall ranking of the proposal.

Consultants are required to clearly demonstrate how their qualifications, experience, methodology, and resources meet the goals and requirements defined in this RFP.

Proposals shall be organized by sections as follows:

1. **Firm Information Form**: The Firm Information Form must be completed and accompanied by the requested litigation history and W-9 form(s).
   No page limit.

2. **Cover Letter**: An introduction to the Firm. If there is more than one Firm, describe the teaming arrangement and specify the lead firm. Provide an overview of the key aspects of the Proposal and value-added services if applicable. Do not include any fee or cost information. The letter shall be signed by an officer or representative on company letterhead and includes primary contact information, a clear statement of interest, and **confirmation that the firm is independent, vendor-neutral, and free from any financial interest in CIS vendors**.
   Maximum 2 pages.

3. **Executive Summary**: A brief overview of the Firm's understanding of the Indian River County Department of Utility Services priorities and objectives. Include a summary of key differentiators and a statement of why the Firm is best suited for this Project engagement.
   Maximum 2 pages.

4. **Qualifications of the Firm**: Provide an overview of the Firm's history, structure, and core areas of expertise, including documentation of experience demonstrating the capability to perform the required services for water, wastewater, and solid waste utilities. Please emphasize the Firm's experience in

developing Utility Technology Master Plans and performing CIS assessments and selections for municipal or utility organizations of comparable size and complexity. Describe any prior experience with Florida municipalities or similar regulatory environments. If multiple Firms are involved, provide the same for all Firms. Provide samples of a comparable technology master plan and a CIS solicitation document (e.g., RFP) completed by the Firm/Consultant as appendices to the Proposal.
Maximum 6 pages excluding sample documents.

5. **Qualifications and Experience of the Project Team**: Provide biographies and qualifications of the key personnel assigned to this project, including project manager, technical leaders, and subject matter experts. Include documentation of relevant certifications and any other pertinent information. Provide no more a one-page biography for key staff, focusing on their qualifications and project experience that are relevant to the Project. Full resumes are optional but can be included in the appendices. Provide an organizational chart of the team depicting roles and responsibilities of each team member, and identification of any subcontractors and their roles. Demonstrate that the personnel as a team or individually have successfully completed services like those specified in the scope of services within this RFP. Indicate the team members' workload on other projects and their availability for this Project.
Maximum 4 pages plus 1 page biography for each key personnel.

6. **Project Understanding and Approach**: Provide a narrative demonstrating the Firm's understanding of the IRCDUS current environment, including challenges, priorities, and strategic goals. Describe the proposed methodologies and detail workplan by phases and tasks, including deliverables, for both the UTMP development and CIS selection. Separate approaches and methodologies for UTMP development and CIS selection shall be described where applicable. Describe how the Firm will engage stakeholders, gather detailed requirements, and deliver actionable recommendations. Include the specific approaches to technology master planning and CIS selection to address the key RFP priorities outlined in this RFP. Describe the proposed tools, frameworks, or accelerators to support plan development and vendor selection.
Maximum 6 pages.

7. **Proposed Project Schedule**: Provide a proposed schedule commencing with an estimated notice-to-proceed (NTP) date of January 1, 2026, that shows duration, start and completion dates. The schedule should be depicted utilizing a Gantt chart format broken down by phases and major tasks (e.g., discovery, assessment, analysis, planning, vendor selection) outlined in the proposed workplan and include key milestones and deliverables. Separate schedules may be provided for UTMP development and CIS selection. Identify any assumptions and dependencies that may impact the proposed schedule.
Maximum 3 - 8-1/2" x 11" pages or 2 - 11" x 17" pages.

8. **Project References**: Provide sufficient documentation and client references for a minimum of three (3) relevant projects completed in the last five (5) years to support your Firm's capability and experience to perform the required services. At least two (2) refences shall be either UTMP development or a CIS selection. Project references should include:
    a. Name of client
    b. Contact name, title, email, phone number
    c. A brief description of the engagement and outcomes
    d. Describe any unique challenges or key objectives that were addressed by the project
    e. Identify any of the proposed personnel involved along with their roles
    f. Project duration and year completed

    Maximum 1 page for each project reference.

9. **Price Proposal**: Provide the proposed fee schedule and commercial terms to complete the Project. Include labor hours by role, billing rates, and other direct reimbursable expenses. The fee schedule shall be aligned with the proposed workplan and deliverables (in tabular format) broken out by the UTMP development and

CIS assessment and selection support. Separate fees may be provided for value-added services or optional services (if any).

Describe any alternate pricing structures (e.g., fixed fee, blended rate) if available, and the proposed approach for pricing additional services that may be requested by IRCDUS.
No page limit.

10. **Required Forms and Supporting Documents**: All forms listed below are provided on Bonfire with the RFP and will be **uploaded separately from the pdf submittal**. Failure to submit the completed forms and supporting documents will result in the Proposal being declared non-responsive. The following information is required for contractual purposes and does not require review by the selection committee:
    - ✓ Sworn statement on Disclosure of Relationships
    - ✓ Certification Regarding Prohibition Against Contracting with Scrutinized Companies form
    - ✓ Anti-Human Trafficking Affidavit
    - ✓ Foreign Ownership Affidavit
    - ✓ County's Sample agreement with any requested changes indicated in track changes (optional, however no changes will be considered to the agreement after the deadline for receipt of proposals)

    No page limit.

11. **Appendices**: Include any additional information required or suggested to be included in the Appendices. No page limit.

Method of Selection

The County shall convene a Selection Committee to evaluate all submittals deemed responsive by the Purchasing Division. If no submittals are deemed responsive, the selection process will stop, and no contract will be awarded. The Selection Committee will determine "next steps" should less than two responsive submittals be received.

The responsibility of the Selection Committee shall be as follows:

a. Each Committee member shall independently review and evaluate each submittal by assigning a number of points for each criterion, as established in the solicitation, and then totaling the number of points for all criteria for each Firm.

b. As a "Committee of the whole", develop a combined ranking order of all Submittals meeting minimum qualifications. The ranking of Firms shall be done in the following manner:

    1. The total number of points received by each Firm from all Committee members shall be totaled and divided by the number of Committee members, to produce an average score.
    2. The Firm receiving the highest average score shall be ranked the # 1 Firm, and the process repeated until all Firms have been ranked according to their average score.
    3. In the event of a tie, the ranking of tied Firms shall be determined by consensus scoring, based on discussion on the tied Firms among the committee.
    4. After the initial ranking is established, the Committee may discuss the scores and their reasons behind them, and each member may modify their ranking or scores of Firms accordingly until the Committee is satisfied with the rankings.
    5. After interviews, and based upon information learned during the interviews, each Committee member will rank the Firms in order of preference and a consolidated final Committee ranking established.

c. The County may, solely at its own option, seek additional Submittals with this or a similar Submittal in the event the County, solely at its own option, determines that the quantity and/or quality of Submittals received

is insufficient to meet the County's needs and/or that award of a contract arising from this RFP would not be in the public interest.

d. The Committee shall forward its recommendations in accordance with the ranking to the Indian River County Board of County Commissioners, which shall, at its sole option, authorize negotiations of a contract pursuant to the requirements of Florida law.

e. The Indian River County Board of County Commissioners possesses sole authority to award a contract for the services sought herein.

Scoring Criteria

Each responsive submittal will be evaluated and scored according to each of the criteria in the following table:

Evaluation Criteria	*Maximum Points*
1. Qualifications of the Firm* (Section 4)	25
2. Qualifications and Experience of the Project Team (Section 5)	15
3. Project Understanding and Approach (Section 6)	25
4. Proposed Project Schedule (Section 7)	10
5. Project References (Section 8)	15
6. Price Proposal (Section 9)	10
TOTAL	**100**

Anticipated Procurement Timeline

The anticipated schedule for procurement of services described herein is summarized in the table below. The County reserves the right to modify, amend any or all dates included in the schedule at its sole discretion.

Event	*Date*
1. Advertise for Proposals	September 26, 2025
2. Proposals Due before 2:00 p.m. on (submit on Bonfire)	Friday, October 24, 2025
3. Initial Selection Committee Meeting	November 6, 2025
4. Interviews (if held)	Week of November 17th
5. Agreement presented to BCC for final approval	December 9, 2025
6. Contract term commences	January 1, 2026

General Terms and Conditions

By submitting a Proposal in response to this request, the Firm/Consultant acknowledges the instructions and information provided herein.

Cone of Silence. Potential respondents and their agents must not communicate in any way with the Board of Commissioners, County Administrator, or any County staff other than Purchasing personnel in reference to or relation to this solicitation. This restriction is effective from the time of RFP issue until the Board of County Commissioners meets to authorize final award. Such communication may result in disqualification.

Interpretations: All questions about the meaning or intent of the Request for Proposals are to be submitted to the County through the Bonfire platform. Interpretations, modifications, responses, or clarifications considered necessary by County in reply to such questions will be issued by Addenda. Only questions answered or changes made by Addenda will be binding. Oral and other interpretations, modifications, or clarifications will be without legal effect. All such Addenda shall become part of the RFP and contract documents.

Submission: All Proposals and required documents must be submitted electronically via the Bonfire portal, prior to the closing date and time. Verbal, printed, emailed, or faxed submissions will not be considered, nor will late submittals. The County will not reimburse any consultant for costs associated with preparation or submittal of a Proposal.

Public Record Exemption: Correspondence, materials, and documents received pursuant to this Request for Proposals become public records subject to the provisions of Chapter 119, Florida Statutes. Should the Consultant assert any exemptions to the requirements of Chapter 119, Florida Statutes, and related statutes, the burden of establishing such exemption, by the way of injunctive or other relief as provided by law, shall be upon the Consultant.

Proposal Rejection: Failure to comply with all the enclosed instructions may result in rejection of the Proposal.

Prohibition Against Considering Social, Political or Ideological Interests in Government Contracting: As provided in section 287.05701, Florida Statutes, as amended, the County may not request documentation of, or consider a Consultant's social, political, or ideological interests when determining if the Consultant is responsible and may not give preference to a Consultant based on its social, political, or ideological interests.

Right to Protest: Any actual or prospective responding party who is aggrieved in connection with a competitive selection process may protest to the Purchasing Manager. The protest shall be submitted to the Purchasing Manager in writing within five (5) calendar days after the party knows or should have known of the facts giving rise to the protest. If the protest is not resolved by mutual agreement, the Purchasing Manager shall promptly issue a decision in writing, after consulting the using Department and the Office of the County Attorney.

Committee Meetings: Notice of committee meetings will be posted to the RFP's project posting on the Bonfire portal. Any portion of a meeting pursuant to a competitive solicitation, at which negotiation strategies are discussed, a vendor makes an oral presentation, or answers questions as part of a competitive solicitation is exempt from the Public Meeting requirements in Chapter 286.011 (per Chapter 286.0113(1)(b)1).

Applicable Law and Venue: The resulting Agreement and all rights and duties of the parties hereto shall be governed by the laws of the State of Florida, including but not limited to the provisions of the Florida Uniform Commercial Code Chapters 671-679 F.S., for any terms and conditions not specifically stated within. Venue for any lawsuit brought by either party against the other party or otherwise arising out of this Contract shall be in Indian River County, Florida, or, in the event of a federal jurisdiction, in the United States District Court for the Southern District of Florida.

Conflict of Interest*:* Any entity submitting a bid, proposal, or SOQ, or entering into a contract with the County shall disclose any relationship that may exist between the contracting entity and a County Commissioner or a County Employee. The relationship with a County Commissioner or a County Employee that must be disclosed is as follows: *current County employee or commissioner, father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, daughter-in-law, son-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half-brother, half-sister, grandparent, or grandchild.* The term "affiliate" includes those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in the management of the entity. The disclosure of relationships shall be a sworn statement made on a County-approved form. Failure to submit the form will be cause for rejection of the bid, proposal, or SOQ.

The following firm(s) are not permitted to participate on any Team, due to conflict of interest related to participation in the development of the project specifications and/or solicitation. Any Proposal submitted that includes a listed firm on their team will not be considered.

1. N/A

Public Entity Crimes: Pursuant to Florida Statutes Section 287.133(2)(a), all consultants/teams are hereby notified that a person or affiliate who has been placed on the convicted vendor list following a conviction for a public entity crime may not submit a bid, proposal, or reply on a contract to provide any goods or services to a public entity (defined as the State of Florida, any of its departments or agencies, or any political subdivision); may not submit a bid, proposal, or reply on a contract with a public entity for the construction or repair of a public building or public work; may not submit bids, proposals, or replies on leases of real property to a public entity; may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity; and may not transact business with any public entity in excess of the threshold amount provided in Florida Statutes Section 287.017 for CATEGORY TWO [currently $35,000] for a period of 36 months from the date of being placed on the convicted vendor list. A "public entity crime" means a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, proposal, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.

Foreign Ownership: By submittal of a response to this RFP, Consultant attests is not owned by, does not have a principal place of business in, and is not established by the laws of, a foreign country of concern as defined in Section 287.138, Florida Statutes.

Suspension and Debarment: County will not make award to parties listed on the government-wide exclusions in the System for Award Management (SAM). The bidder/proposer/consultant agrees to comply with the requirements of 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The

bidder/proposer/consultant further agrees to include a provision requiring such compliance in its lower tier covered transactions. The bidder/proposer/consultant further agrees to include a provision requiring such compliance in its lower tier covered transactions. By submittal of its response to this solicitation, bidder/proposer/consultant asserts neither it nor its principals is presently debarred, suspended or proposed for debarment, declared ineligible, or voluntarily excluded from participation in this work by any Federal department or agency. For work funded by federal grant, bidder/proposer/consultant is required to have an active registration with the System for Award Management (SAM) (https://www.sam.gov) prior to execution of the agreement.

Scrutinized Companies Lists: The Consultant certifies that it and those related entities of Consultant as defined by Florida law are not on the Scrutinized Companies that Boycott Israel List, created pursuant to s. 215.4725 of the Florida Statutes, and are not engaged in a boycott of Israel. In addition, if this agreement is for goods or services of one million dollars or more, Consultant certifies that it and those related entities of respondent as defined by Florida law are not on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, created pursuant to Section 215.473 of the Florida Statutes and are not engaged in business operations in Cuba or Syria. The County may terminate this Contract if Consultant is found to have submitted a false certification as provided under section 287.135(5), Florida Statutes, been placed on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, or been engaged in business operations in Cuba or Syria, as defined by section 287.135, Florida Statutes. The County may terminate this Contract if the Consultant, including all wholly owned subsidiaries, majority-owned subsidiaries, and parent companies that exist for the purpose of making profit, is found to have been placed on the Scrutinized Companies that Boycott Israel List or is engaged in a boycott of Israel as set forth in section 215.4725, Florida Statutes.

Accordingly, firms responding to this solicitation shall return with their response an executed copy of the attached "Certification Regarding Prohibition Against Contracting With Scrutinized Companies." Failure to return this executed form with submitted bid/proposal/statement of qualifications will result in the response being deemed non-responsive and eliminated from consideration.

Non-Discrimination: The County will not knowingly do business with vendors, firms, or contractors who discriminate on the basis of race, color or national origin, sex, sexual orientation, gender identity, age and/or disability. Through the course of providing services to the County, Contractors shall affirmatively comply with all applicable provisions of Title VI of the Civil Rights Act of 1964, the Civil Rights Restoration Act of 1987 and the Florida Civil Rights Act of 1992, as well as all other applicable regulations, guidelines, and standards. Any person who believes their rights have been violated should report such discrimination to the County's Title VI/Nondiscrimination Coordinator through the office of the County Attorney.

No Coercion: Consultant attests it does not use coercion for labor or services.

E-Verify: Consultant must be registered with and use, at their sole expense, the Department of Homeland Security's E-Verify system (www.e-verify.gov) to confirm the employment eligibility of all newly hired employees, as required by Section 448.095, F.S. County, consultant, and subconsultants may not enter into a contract unless each party to the contract registers with and uses the E-Verify system. Consultant is responsible for obtaining proof of E-Verify registration for all subconsultants. This requirement applies to any provider of services or goods.

Assignment/Delegation: No right, obligation or interest in an awarded Agreement may be assigned or delegated by the Consultant without prior written consent of the County, without prejudice to County's other rights and remedies.

Indemnification: Consultant shall defend, indemnify and hold harmless the County and its commissioners, officers, employees and agents, from any and all losses, damages, expenses (including reasonable attorneys fees) and other liabilities of any type whatsoever, arising out of or relating to any negligence, intentional tort, breach of contract, or breach of applicable law by the Consultant, or its employees, agents, subcontractors, or other persons or entities performing work under the contract.

Records/Audit: The Consultant shall maintain books, records, and documents pertinent to performance under this Invitation and any resulting Agreement in accordance with generally accepted accounting principles consistently applied. The County and the Florida Office of the Inspector General shall have inspection and audit rights to such records for audit purposes during the term of the contract and for three years following the termination of obligations hereunder. Records which relate to any litigation, appeals or settlements of claims arising from performance under this work or purchase shall be made available until a final disposition has been made of such litigation, appeals, or claims.

Public Access: The Consultant shall allow public access to all documents and materials in accordance with the provisions of Chapter 119, Florida Statutes.

Insurance:

- ***Owners and Contractors Insurance****:* The Consultant shall not commence work until they have obtained all the insurance required under this section, and until such insurance has been approved by the owner, nor shall the contractor allow any subcontractor to commence work until the subcontractor has obtained the insurance required for a contractor herein and such insurance has been approved unless the subcontractor's work is covered by the protections afforded by the Consultant's insurance.

- ***Worker's Compensation Insurance****:* The Consultant shall procure and maintain worker's compensation insurance to the extent required by law for all their employees to be engaged in work under this contract. In case any employees are to be engaged in hazardous work under this contract and are not protected under the worker's compensation statute, the Contractor shall provide adequate coverage for the protection of such employees.

- ***Public Liability Insurance****:* The Consultant shall procure and maintain broad form commercial general liability insurance (including contractual coverage) and commercial automobile liability insurance in amounts not less than shown below. The owner shall be an additional named insured on this insurance with respect to all claims arising out of the operations or work to be performed.

Commercial General (Public) Liability, other than Automobile $1,000,000.00 Combined single limit for Bodily Injury and Property Damage	**Commercial General** **Premises / Operations** **Independent Contractors** **Products / Completed Operations** **Personal Injury** **Contractual Liability** **Explosion, Collapse, and Underground Property Damage**

Automobile	**Owner Leased Automobiles** **Non-Owned Automobiles** **Hired Automobiles** **Owned Automobiles**

$1,000,000.00 Combined single limit Bodily Injury and Damage Liability	

Professional Liability Insurance	**$1,000,000 per occurrence** **$2,000,000 aggregate combined single limit** **$5,000 maximum deductible per claim**

- ***Proof of Insurance****:* The Consultant shall furnish the owner a certificate of insurance in a form acceptable to the owner for the insurance required. Such certificate or an endorsement provided by the contractor must state that the owner will be given thirty (30) days written notice prior to cancellation or material change in coverage. Copies of an endorsement-naming owner as Additional Insured must accompany the Certificate of Insurance.

Note: Any and all special conditions attached hereto, which may vary from these General Conditions, shall have precedence.

End of General Terms and Conditions